I. MOTION

COMES NOW, Defendant, by and through attorney, Anna Lasher, and MOVES the Court for evidentiary hearing pursuant to ORS 135.037 and UTCR 4.060 and for an order suppressing the seizure of Defendant and all derivative evidence. Defendant challenges the reasonableness of the stop and moves to suppress its fruits, invoking Article I, § 9 of the Oregon Constitution and the Fourth Amendment of the U.S. Constitution as applied to the states through the Fourteenth Amendment. Defendant's seizure is presumed unreasonable and the state has the burden of demonstrating otherwise. *State v. Miller*, 269 Or 328, 334 (1974) ("a seizure without a warrant is per se unreasonable"). Specifically, Defendant requests the suppression of all primary and derivative evidence, including drugs found in her belongings and her identification, and all

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statements made by Defendant.This Motion is, in the opinion of counsel, well founded in law and is supported by the following Memorandum of Law and the testimony to be addressed at the hearing on this matter.

II. FACTS[1]

On July 30, 2024, a loss prevention officer, Sarah Fillis, at Target on NW Cornell Rd contacted police regarding a series of thefts committed in June and July 2024 by a single unknown female suspect. Deputy David Rambin of the Washington County Sheriff's Office investigated these thefts on July 31, 2024 by collecting loss prevention reports and surveillance footage from Target. These thefts took place on June 2, June 24, July 24, and July 25. The method in the thefts was not always the same. In some incidents, the unknown suspect engaged in "skip-scanning" using the self-checkout lane, which consists of not scanning every item before paying for smaller items and leaving the store. In other instances, the unknown suspect engaged in return fraud or floor returns by returning items that she had just taken from the sale floor in exchange for store gift cards or cash. The report of July 31 consisted of the following theft values:

- June 2 - $38.53
- June 2 - $2.49
- June 24 - $143.51
- July 24 - $197.40

[1] These facts are taken from the police reports and are provided for the convenience of the court and to frame the issues addressed in this brief. Defendant in no way concedes the truth of these facts nor stipulates to these facts.

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- July 25 - $125.43

The total amount for these thefts was $531.73. Because the suspect was not identified at the time, the case remained open.

On September 18, 2024, Ms. Fillis reported a theft from the night prior on September 17, in which an unidentified female suspect left the store without paying for selected merchandise valued at $895.84. Dept. Rambin took this report from Ms. Fillis and collected security footage and still shots. He asked for an identification bulletin to be made from the photos to seek information about the suspect's identity. It is unclear from his reports when he actually reviewed the photo and video evidence from the September 17 theft.

Sometime later, but also on September 18, Dept. Rambin learned that Deputy Augusto Orozco had been texted by Ms. Fillis that the unknown suspect from the September 17 incident had returned, this time accompanied by a male. Dept. Rambin's report makes it clear that he believed Ms. Fillis was referring to the same suspect about whom he had just taken a report of theft. Upon arrival at the store, Dept. Rambin was informed that the female suspect was inside selecting items, and that Ms. Fillis had observed the male suspect remove security wires from a vacuum. When the pair exited the store, Dept. Rambin detained the female suspect and identified her as Ashle' Penn. Dept. Orozco detained the male suspect and identified him as Barry Washington. After detaining Ms. Penn and Mr. Washington, Dept. Orozco spoke to Ms. Fillis and learned that Ms. Penn was seen selecting items in the store, going to the customer service desk, returning some of the items in her cart with a receipt and receiving cash, and then leaving the store with an unpaid-for vacuum and other items still in the bottom of her cart. Dept. Orozco

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1 told Dept. Rambin that the unpaid-for items were valued at $192.03 and the amount of cash
2 received for fraudulent returns was $93.53, for a total of $285.56. Dept. Rambin believed that
3 Ms. Penn had stolen a total of $1,181.39 between the thefts on September 17 and 18, and
4 believed he had probable cause to arrest Ms. Penn for Theft in the First Degree. During a search
5 incident to arrest, Deputy Cole Whipple found a small glass vial containing white crystalline
6 powder in Ms. Penn's bags. The powder weighed 2.1 grams, and a field test was positive for
7 methamphetamine. Deputy Christopher Estrada later collected surveillance footage and stills
8 from the September 18 theft. On September 19, 2024, Ms. Penn was charged by District
9 Attorney's Information with Theft in the First Degree, for thefts alleged to have been committed
10 on or between September 17, 2024, and September 18, 2024.
11 On October 1, 2024[2], Washington County Sheriff's Office intelligence analyst Travis
12 Grower contacted Dept. Rambin and said that he believed that the suspect from June and July
13 2024 thefts was Ashle' Penn. At that point, Dept. Rambin compared the recent booking photo of
14 Ms. Penn to the surveillance photos from June and July and concluded that they were the same
15 person. Since the documented amount of theft from the original July 31, 2024 report was
16 $531.73, Dept. Rambin believed he had probable cause to arrest Ms. Penn for Theft in the
17 Second Degree. Dept. Rambin attempted to contact Ms. Penn at her last known address but
18 learned that she had moved. Attempts to reach Ms. Penn by phone were unsuccessful, so he
19 wrote and submitted an arrest warrant on December 8, 2024.

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[2] Dept. Rambin's reports are inconsistent and describe this same conversation as happening on both October 1st and October 9th.

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On December 27, 2024, Dept. Rambin was informed that it was possible that Ms. Penn was not the suspect from the September 17 theft incident[3]. Dept. Rambin returned to the Target and spoke to the lead loss prevention officer of that store, Kinley Baker, and asked to review all loss prevention reports involving Ms. Penn (whose name had been associated with the reports from June and July based on the information learned by Dept. Rambin in October 2024) and the report and footage from the September 17 theft. Dept. Rambin realized that the suspect from September 17 was not Ms. Penn. Dept. Rambin then asked Ms. Baker to re-compile all reports involving Ms. Penn on a new flash drive. Dept. Rambin reviewed the evidence and documented the following theft amounts in his report:

- June 2 - $38.53
- June 24 - $33.37
- June 24 - $134.51
- July 24 - $197.40
- July 25 - $125.43
- July 27 - $814.85
- August 2 - $55.00
- September 5 - $101.93 (Target Tanasbourne)
- September 19 - $479.79

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[3] On December 24, 2024, Defendant filed a motion to withdraw a waiver of preliminary hearing. This presumably prompted the State to prepare the case for Grand Jury, at which point the DDA would have reviewed the surveillance footage from the two incident dates and discovered that the September 17 suspect was a different person than the September 18 suspect.

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Dept. Rambin's report alleges that the total value of items taken from Target by Ms. Penn between June 2-September 19, 2024, was $1,350.81. It should be noted that the actual total of these numbers is $1,980.80. It should further be noted that Ms. Penn was still in custody on September 19, 2024, due to her arrest the previous day.

At a Grand Jury proceeding on January 14, 2025, Kinley Baker testified to the following theft incidents and amounts:

- June 2 – skip scanning (no amount stated)
- June 24 – floor returns ($33.37) and skip scanning ($134.51)
- July 24 – skip scanning ($197.40)
- July 25 – skip scanning and floor returns ($125.43 total)
- July 27 – skip scanning ($184.85)
- August 2 – floor returns and skip scanning ($55.00 total)
- September 18 – skip scanning ($479.79)

The sum of these amounts is $1,210.35[4]. Ms. Baker told the Grand Jury that Dept. Rambin had been present on September 18 while investigating an unrelated theft. Dept. Rambin told the Grand Jury that he had been contacted by Ms. Baker on September 18, who told him that a repeat offender was actively engaging in a theft.

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[4] It should be noted that the Ms. Baker's stated theft value for September 18 ($479.79) is considerably greater than the amount originally reported by Dept. Rambin at the time she was arrested ($285.56). However, re-adding these amounts with the lower value from September 18 gives a total of $1,016.12, which is still over the $1,000 threshold for Theft in the First Degree.

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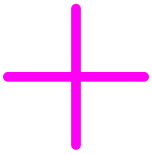

III. MEMORANDUM OF LAW

a. Legal Standard

Warrantless searches and seizures are per se unreasonable unless they fall within one of the few specially established and well-delineated exceptions to the warrant requirement. The State has the burden of showing, by a preponderance of the evidence, that circumstances existing at the time of the search or seizure fall within one of the exceptions. ORS 133.693(4); *State v. Davis*, 295 Or. 227, 237, 666 P2d 802 (1983). One such exception is an arrest supported by probable cause. A police officer may arrest a person without a warrant if the officer has probable cause to believe that the person has committed a felony. ORS 133.310(1)(a). ORS 131.005(11) defines "probable cause" to arrest as a substantial objective basis for believing that more likely than not an offense has been committed and that the person to be arrested has committed it. Probable cause to support a warrantless arrest has two components: subjective belief and objective belief. An officer must subjectively believe that a crime has been committed and thus that a person or a thing is subject to seizure, and the officer's subjective belief must be objectively reasonable under the circumstances. *State v. Vasquez-Villagomez*, 346 Or. 12, 23, 203 P.3d 193 (2009). Under the "collective knowledge doctrine," the officer conducting the stop or arrest need not have personal knowledge of the facts amounting to probable cause, so long as the arresting officer was acting at the behest of another officer who had both subjective and objective probable cause. *State v. Soldahl*, 331 Or 420, 428, 15 P3d 564, (2000). ("[O]fficers may direct one another to carry out lawful police activities. However, the state retains the

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1 obligation at trial to establish that police action was initiated by an officer who had both
2 objective and subjective probable cause.").

3 **b. Application**

4 The investigation of these thefts from Target as laid out in police reports shows that Dept.
5 Rambin believed that he was arresting the suspect from the September 17 theft. He formed this
6 belief based on information learned from Sarah Fillis and Dept. Orozco. He did not review the
7 surveillance footage and form his own conclusions. His subjective belief of probable cause was
8 not objectively reasonable because he did not have sufficient information to believe that Ms.
9 Penn had committed the September 17 theft for which he was arresting her. This is confirmed by
10 the fact that he did not realize that Ms. Penn was not the September 17 suspect until after the
11 State began preparing to take this case before a Grand Jury. Rather, he believed Ms. Fillis, by
12 way of Dept. Orozco, who said that this was the same suspect. But it does not appear that Dept.
13 Rambin had yet reviewed the footage from September 17, because if he had, he would not have
14 believed that Ms. Penn committed that crime. Against, this is confirmed by the fact that upon
15 reviewing the September 17 footage in December, he immediately realized that the suspect was
16 not Ms. Penn.

17 Because Ms. Penn was seized without probable cause, the search incident to arrest
18 performed by Dept. Whipple was also unlawful. Thus, the drugs found in her possession must
19 also be suppressed as the fruits of an unlawful seizure.

20 Finally, Ms. Penn was not identified as the suspect in the June and July 2024 after she
21 was arrested in September 2024. It was only through her wrongful arrest that the Washington

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County Sheriff's Office was able to identify her as a suspect from the previously reported thefts. But for the arrest of Ms. Penn, she would not have been identified. This is clear derivative use of evidence from a wrongful seizure, and her identification in those thefts must be excluded as well.

IV. CONCLUSION

Ms. Penn's arrest by Dept. Rambin on September 18, 2024, was not supported by probable cause because he objectively believed he was arresting her for a crime that was different than the crime that Dept. Orozco had probable cause for. The failure of the deputies to accurately pool their knowledge lead to a confusing string of events in which Ms. Penn was initially charged with a crime that she objectively did not commit. Her wrongful arrest was what allowed police to later develop probable cause for her arrest for prior thefts. This derivative use of evidence must be excluded as fruit of the poisonous tree and be excluded.

Dated: April 7, 2025

s/*Anna Lasher*
Anna N. Lasher, OSB #153980
Attorney for Defendant

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IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR WASHINGTON COUNTY

STATE OF OREGON, Plaintiff, vs. ASHLE ANTOINETTE **PENN**, Defendant.	No. 24CR49043 **INDICTMENT** - Secret

The above named defendant is accused by the Grand Jury of Washington County by this indictment of the crime(s) of

Count 1: THEFT IN THE FIRST DEGREE (FSG= 3; C Felony; ORS 164.055)
Count 2: UNLAWFUL POSSESSION OF METHAMPHETAMINE (A Misdemeanor; ORS 475.894 (2)(b))

committed as follows:

COUNT 1
The defendant, on or between June 2, 2024 and September 19, 2024, in Washington County, Oregon, did unlawfully commit theft of merchandise, of the value of one thousand dollars or more, the property of Target.

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//

//

COUNT 2
As a separate act and transaction but as part of crimes that are of the same or similar character and a common scheme and plan as Count 1:The defendant, on or about September 18, 2024, in Washington County, Oregon, did unlawfully and knowingly possess two grams or more of a mixture or substance containing a detectable amount of methamphetamine.

contrary to the statutes and against the peace and dignity of the State of Oregon

It is hereby affirmatively declared for the record, upon appearance of the defendant for arraignment, and before the Court asks how the defendant pleads to the charges, that the State intends that any misdemeanor offenses charged herein each proceed as a misdemeanor.

Dated: January 14, 2025

Witnesses subpoenaed, examined and appeared in person unless otherwise indicated before the Grand Jury for the State of Oregon:

David Rambin
Kinley Baker

A TRUE BILL

Foreperson of the Grand Jury

KEVIN BARTON, District Attorney

Alicia Gerlen
Deputy District Attorney
Oregon State Bar # 204744

DA # 437558
HBS 50-2413459
DOB 02/15/ 1988
FPC #: JWAS224065036
☐ **Requesting Preventative Detention**

Grand Jury Proceeding Dates:
January 14, 2025

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NARRATIVE

AUTHOR:	DATE/TIME:
RAMBIN, DAVID (53879)	07/30/2024

SUBJECT
PRIMARY NARRATIVE

MENTIONED:

Dep. Elliott Heart, WCSO

SUMMARY:

Theft report. Sarah Fillis, a loss prevention agent for Target, reported that an unknown black female adult stole multiple times from the Target located at 12675 NW Cornell Rd, Portland. This case is currently open.

NARRATIVE:

On July 30, 2024, Dep. Heart was dispatched to a report of a theft at the Target, located at 12675 NW Cornell Rd, Portland. When he arrived, he spoke with Sarah Fillis, who I know to be a loss prevention agent for Target, and learned that a black female adult had entered the store multiple times since June 2, 2024, and had stolen multiple items from the store. Sarah was able to provide details to Dep. Heart of these thefts on a thumb drive.

Due to various calls, Dep. Heart was not able to review the thumb drive and asked me to follow up for him.

On July 31, 2024, I was able to speak with Sarah at Target and learned the following:

Sarah stated that on the thumb drive were 5 incident reports of shoplifting that involved the same female. Sarah said that this female, described as a black female adult, would enter the store and after selecting multiple items, would then steal from the store through various means. Sarah said that the total amount of theft was $531.73.

After getting this from Sarah, I left the store and later reviewed the loss prevention reports.

I saw that on June 2, 2024, the female entered the store and after selecting multiple items, returned some of the items to Guest Services, getting a gift card in return, and then left the store without paying for additional items. I saw that the total loss for this incident was $38.53. I saw that the female returned on June 2, 2024 again selects items and then returns them to guest services, receiving a gift card in return. I saw that the total loss in this incident was #2.49.

I saw that on June 24, 2024, the female returned to the store and after selecting items, returned them to guest services, receiving a gift card in return and scanned Tic-Tacs in place of the correct items while at the self-checkout lane. I saw that the total loss in this incident was #143.51.

I saw that the female returned to the store on July 24, 2024 and after selecting multiple items attempted to return one of them to guest services. I saw that this return was denied due to the female claiming that she did not have her ID on her. I saw that the female then entered the self-checkout lane and after paying for only one item, left the store. I saw that the total loss on this incident was $197.40.

I saw that the female returned to the store on July 25, 2024, and after selecting multiple items, returned some of them to guest services and received a gift card. After leaving guest services, the female then left the store with items that had not been paid for. I saw that the total loss for this incident was $125.43.

After reviewing these incident reports, I confirmed that it was the same female in all of the incidents and I saw that she was seen leaving the store in a white Jeep Renegade with no visible plate.

After reviewing these incidents, I placed the thumbdrive into evidence.

At this time, this case is currently open.

RECOMMENDED ACTIONS:

This case is currently open.

ADDITIONAL NOTES:

NA

BODY CAM TEMPLATE

AUTHOR	DATE/TIME
RAMBIN, DAVID (53879)	07/31/2024

SUBJECT
BWC SUPPLEMENTAL

MENTIONED:

Travis Gower, WCSO Investigtions

SUMMARY:

Follow up report. The suspect in this case has been identified as Ashle Penn. This case is open pending contact with Ashle.

NARRATIVE:

On July 31, 2024, I spoke with Sarah Fillis, who I know to be a loss prevention agent for Target, and learned that a black female adult had been to the store multiple times between June 2, 2024 and July 25, 2024. Sarah informed me that the total amount of the thefts was $531.73.

Due to not being able to identify the female at the time, a "Can you ID me?" bulletin was sent out.

On October 1, 2024, I was contacted by Travis Gower, who I know to be an intelligence analyst for the Washington County Sheriff's Office and he told me that he believed that the female in the photos was Ashle Penn, a suspect in another theft, documented in case 50-24-13459.

After getting this information, I compared the photos of Ashle taken that night to the photos from Sarah's report and saw that they were of the same person.

Due to this, I developed probable cause to arrest Ashle Penn for Theft II due to her taking over $100.00 and under $1000.00 in merchandise from the Target located at 12675 NW Cornell Rd, Portland, OR between June 2, 2024 and July 25, 2024.

This case is currently open.

RECOMMENDED ACTIONS:

MENTIONED:

NA

SUMMARY:

Follow up report. An arrest warrant has been submitted for this case. This case is currently open.

NARRATIVE:

On July 30, 2024, I was dispatched to the Target located at 12675 NW Cornell Rd, Portland, due to a report of a theft. When I arrived, I spoke with Sarah Fillis, who I know to be a loss prevention agent for Target, and learned that there were a total of 5 incidents involving the same female. Sarah told me that the value of the items stolen was over $500.00.

This female was later identified as Ashle Penn.

I then attempted to contact Ashle at her last known address per ecourts but when I arrived, I learned that Ashle had moved from the location and that the current resident did not have a current address. I then attempted to contact Ashle but I learned that all of her phone numbers were currently either not working or had been changed.

Due to this, I wrote and submitted an arrest warrant.

This case is currently open.

RECOMMENDED ACTIONS:

This case is currently open,

ADDITIONAL NOTES:

MENTIONED:

NA

SUMMARY:

Follow up report. A grand jury indicted Ashle Penn in this case. This case is currently open pending her arrest on the warrant.

NARRATIVE:

On July 30, 2024, I was contacted by Sarah Fillis, who I knew to be a loss prevention agent for the Target located at 12675 NW Cornell Rd, Portland due to a report that a black female adult had entered the store multiple times and had stolen multiple items.

On October 9, 2024, I was contacted by Travis Gower, who I know to be an intelligence analyst for the Washington County Sheriff's Office who informed me that he believed that the female in this case was Ashle Penn, after she had been arrested for an additional theft from Target.

Due to not being able to locate Ashle, an arrest warrant was written and submitted to the Washington County District Attorney's Office on December 8, 2024.

On January 14, 2025, a grand jury was convened and Ashle was indicted on Theft I and PCS-Methamphetamine charges.

Due to this, this case is currently open pending her arrest on the warrant.

RECOMMENDED ACTIONS:

This case is currently open pending Ashle Penn's arrest.

ADDITIONAL NOTES:

SUMMARY:

Follow up report. This follow up report documents the various incidents of Ashle Penn removing items from the Target located at 12675 NW Cornell Rd, without paying for them. The total value of the merchandise removed from Target by Ashle Penn is $1,248.88.

NARRATIVE:

On September 18, 2024, I was dispatched to a report of a theft at the Target located at 12675 NW Cornell Rd, Portland. When I arrived, I learned that a black female adult had been seen leaving the store via a fire exit with over $800.00 in merchandise the previous day, September 17, 2024. After speaking with Sarah Fillis, who I know to be loss prevention for Target, I left the location.

Later that evening, Sarah called in to report that a female, who matched the description of the female from the earlier report, had reentered the store with another male and was actively concealing items. This female was later identified as Ashle Penn and was arrested after leaving the store with items that she had not paid for.

On December 27, 2024, I was informed that it was possible that Ashle was not the suspect in the incident from September 17, 2024 incident. Due to this, I returned to the Target and after explaining the situation to Kinley Baker, who I know to be the lead for loss prevention for the NW Cornell Rd location, I asked her if I could look at all of the loss prevention reports involving Ashle Penn and the incident on September 17, 2024.

After reviewing all of the photos, I saw that the suspect from the September 17, 2024 incident was not Ashle Penn. Due to this, I advised Kinley that I would document the theft from September 17, 2024 under a different case number and asked her to provide the loss prevention report and security footage on a different thumb drive. I then asked Kinley to compile all of the incidents involving Ashle on another thumb drive. Kinley stated that she would and that she would call in when it as ready to be picked up.

Kinley later called into to advise me that the thumb drive was ready to be picked up. After collecting the thumb drive, I was able to review it.

While reviewing this thumb drive, I saw that on June 2, 2024, Ashle entered the Target and left with $38.53 in merchandise. I saw that on June 24, 2024, Ashle entered the Target twice and took $33.37 one time and $134.51 the second in merchandise. I saw that on July 24, 2024, Ashle entered the Target and left with $197.40 with merchandise. I saw that on July 25, 2024, Ashle entered the Target and left with $125.43 in merchandise. I saw that on July 27, 2024, Ashle entered the Target and then left with $814.85 in merchandise. I saw that on August 2, 2024, Ashle entered the Target and then left with $55.00 in merchandise. I saw that on September 5, 2024, Ashle entered into a different Target, located in Tanasbourne, OR and left with $101.93. I saw that on September 19, 2024, Ashle entered the Target and was arrest for stealing $479.79 in merchandise. I saw that the total value of items taken from Target by Ashle Penn was $1,350.81.

After reviewing this thumb drive, I placed it into evidence.

This case was previously cleared by arrest.

RECOMMENDED ACTIONS:

This case was cleared by arre

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IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR WASHINGTON COUNTY

STATE OF OREGON, Plaintiff, vs. ASHLE ANTOINETTE **PENN**, Defendant.	No. **DISTRICT ATTORNEY'S INFORMATION**

The above-named defendant is accused by this information of the crime(s) of

Count 1: THEFT IN THE FIRST DEGREE (FSG= 3; C Felony; ORS 164.055)
Count 2: UNLAWFUL POSSESSION OF METHAMPHETAMINE (A Misdemeanor; ORS 475.894 (2)(b))

committed as follows:

COUNT 1
The defendant, on or between September 17, 2024 and September 18, 2024, in Washington County, Oregon, did unlawfully commit theft of merchandise, of the value of one thousand dollars or more, the property of Target.

COUNT 2
As part of the same act and transaction and part of crimes that are of the same or similar character and a common scheme and plan as Count 1:The defendant, on or about September 18, 2024, in Washington County, Oregon, did unlawfully and knowingly possess two grams or more of a mixture or substance containing a detectable amount of methamphetamine.

contrary to the statutes and against the peace and dignity of the State of Oregon.

It is hereby affirmatively declared for the record, upon appearance of the defendant for arraignment, and before the Court asks how the defendant pleads to the charges, that the State intends that any misdemeanor offenses charged herein each proceed as a misdemeanor.

Dated: September 19, 2024

KEVIN BARTON, District Attorney

By: _____
Alicia Gerten, OSB # 204744
Deputy District Attorney

ECR Eligible
DA #437558
HBS 50-2413459
DOB 02/15/1988
FPC #: JWAS224065036
Appear – In Custody
☐ Requesting Preventative Detention

AUTHOR	DATE/TIME
RAMBIN, DAVID (53879)	09/18/2024

SUBJECT
PRIMARY NARRATIVE

MENTIONED:

NA

SUMMARY:

Theft II report. An unidentified female stole over $800.00 in merchandise from the Target located at 12675 NW Cornell Rd, Portland. This case is currently open.

NARRATIVE:

On September 18, 2024, I was dispatched to the Target located at 12675 NW Cornell Rd, Portland due to a report of a theft that had happened the day before. When I arrived, I was able to speak with Sarah Fillis, who I know to be a loss prevention agent for Target, and learned that a female had entered the store and after selecting multiple items then left the store without paying for them. I was informed that the total for the theft was $895.84.

Sarah then provided me with a thumb drive with the Target loss prevention report, security footage, and still shots.

After providing the case number to Sarah, I then left the store.

I was later able to review the security report and learned that a black female adult had entered the store and after making multiple selections, concealed them in totes and then left the store by going out of a fire exit and bypassing all points of sale. I saw that the report included a list of items that had been stolen and that the value of the items was $895.84.

I later placed the thumb drive into evidence and asked that a "Can you ID me?" bulletin be sent out.

At this time, this case is currently open.

RECOMMENDED ACTIONS:

Dep. Joshua Stone, WCSO

SUMMARY:

Follow up report. The suspect in this case, Ashle Penn, was identified while she attempted to steal additional items from Target with Barry Washington. Both were contacted and arrested. This case is cleared by arrest.

NARRATIVE:

On September 18, 2024, I was dispatched to the Target located at 12675 NW Cornell Rd, Portland due to a report of a theft. When I arrived, I was able to speak with Sarah Fillis, who I know to be a loss prevention agent for Target, and learned that the previous night, September 17, 2024, a black female adult, had entered the store, and after selecting multiple items, left the store with the items through a fire door and without paying for the items. Sarah told me that the value of the items stolen was $895.84.

After taking the report, I left the store.

Later on September 18, 2024, Dep. Orozco was notified by Sarah that the female from this case had returned to the store, this time accompanied by a black male adult. When I arrived at the store, I was informed that the female was currently selecting items inside the store and that Sarah had witnessed the male removing the security wire from a vacuum.

Once the male and female left the store, I contacted the female, later identified as Ashle Penn, while Dep. Orozco and Dep. Stone detained the male, later identified as Barry Washington.

Once Ashle was contacted, I detained her in handcuffs. After checking them for tightness and fit, I double locked them and then led Ashle to my patrol car. While I was leading her to my

patrol car, I read Ashle her Miranda rights from a department issued card. After reading Ashle her Miranda rights, I asked her if she understood them and she stated that she did. I then attempted to speak with Ashle but she refused to speak with me.

While I was speaking with Ashle, Dep. Stone learned that Barry had a valid warrant for his arrest. Due to this, Barry was detained as well.

Once both Barry and Ashle were detained, Dep. Orozco spoke with Sarah and learned the following:

Ashle was seen selecting items inside the store and then without paying for the items, approached the customer service desk with a cat full of items and the vacuum underneath and returned the items that were in the main compartment of the cart and failed to pay for the vacuum. Due to Ashle selecting items in the store from receipts that she had found outside the store, Ashle was given cash for the items. Ashle and Barry then exited the store where she was contacted by myself and Dep. Stone.

Dep. Orozco told me that the value of the vacuum, which was never paid for, and additional

Dep. Orozco told me that the value of the vacuum, which was never paid for, and additional items that had not been returned was $192.03. Dep. Orozco told me that the value of the items that had been selected inside the store and then returned was $93.53, making the total for the items that was stolen $285.55.

Due to Ashle stealing $895.84 on September 17, 2024, to total amount that she had taken from Target over two days was $1181.39. Due to this, I developed probable cause to arrest Ashle Penn for Theft I.

Both the stolen items and the cash was returned to Target.

While searching Ashle's bags, Dep. Whipple located a small glass vial containing a white crystalline powder and a glass pipe. Based on my training and experience, I recognized the white crystalline powder as methamphetamine and the glass pipe as an instrument that is commonly used to smoke methamphetamine. Due to this, I seized both of these items and developed probable cause to arrest Ashle for PCS-Methamphetamine.

I then informed Ashle that she was being arrested for Theft I and PCS-Methamphetamine.

While Dep. Stone was speaking with Barry, he located a powerful magnet that appeared to be used to defeat security measures at department stores. Due to Barry assisting Ashle while

she was stealing the vacuum and being in possession of the magnet, Dep. Stone developed probable cause to arrest Barry for Theft II, Possession of a Burglary Tool, and on the warrant. Please see his case, 50-24-13463 for more information.

Dep. Stone and I then transported Barry and Ashle to the Washington County jail where they were then booked into and lodged with no issues.

I then placed the white crystalline powder into evidence. While placing it into evidence, I weighed the powder and saw that it weighed 2.1 grams and that it gave a presumptive positive result for methamphetamine.

This case is cleared by arrest.

RECOMMENDED ACTIONS:

This case is cleared by arrest.

ADDITIONAL NOTES:

NA

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

ARRESTEE: **Penn, Ashle Antoinette**)
BOOKING NUMBER: 24-9298)
DATE OF ARREST: **09-18-24**)
TIME OF ARREST: **2142hrs**)

Affidavit in Support of Probable Cause Arrest

STATE OF OREGON)
) ss.
County of Washington)

I, **David Rambin;** DPSST **53879** , am a police officer with Washington County Sheriff's Office. I have arrested the person named as the arrestee above for the crime or crimes of **Theft 1, PCS** ~~II~~ Meth OR 53879

The reasons for the arrest appear below in the statement of facts. I have personally observed the facts or they were relayed to me by the people whose names and addresses appear in the statement. If the person is a police officer, the officer's name and agency appear.

The crime or crimes occurred within Washington County on *(date)* **09-18-24** at *(time)* **2142hrs** at this location: **12675 NW Cornell Rd, Portland, OR 97229**.

The alleged victim is **Target (Sarah Fillis 05-11-86)**, *(telephone)* **503-839-9129** *(address)* **12675 NW Cornell Rd, Portland, OR 97229**; relation to arrestee: **none**. Victim notification ☒ **is** ☐ **is not** required.

Statement of Facts: On September 18, 2024, I was dispatched to the Target located at 12675 NW Cornell Rd, Portland, OR 97229 due to Sarah Fillis, who I know to be a loss prevention agent for Target, reporting a theft. When I arrived, Sarah stated that a black female adult had entered the store and after selecting multiple items, left the store through a fire exit without paying for the items on September 17, 2024. Sarah told me that the value of the items stolen was $895.84

Later on September 18, 2024, called again to report that the female was back in the store. Due to this, I returned to the Target. While waiting for the female to leave the store, Sarah informed me that her and another male, Barry Washington, were actively removing the security wrapping off of a vacuum.

Once the female exited the store, I contacted the female and detained her. I then learned that the female was Ashle Penn. Ashle refused to speak with me once she was detained.

Sarah then informed me that she had witnessed Ashle walking through the store selecting items. Once Ashle had selected the items, she approached the customer service counter and then conducted a return for the items, without having paid for them first. Sarah told me that the value of the vacuum, which was never paid for, and the value of the returned items was $285.55.

Due to the total value of the items being $1,181.39, I developed probable cause to arrest Ashle for Theft I.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

FOR THE COUNTY OF WASHINGTON

While inventoring Ashle's personal items, I located a glass tube that contained a white crystalline substance, that based on my trainined and experience, I believed was methamphetamine. Due to this, I developed probable cause to arrest Ashle for PCS-Methamphetamine.

Ashle was then transported to the Washington County jail where she was booked into and lodged with no issues.

Narrative:

On 09-18-2024, at approximately 2115 hours, I responded to a theft in progress from the Target store at 12675 NW Cornell Rd, Portland, OR 97229.

Deputy Orozco informed me prior to my arrival that two suspects were currently being monitored in the store. I was advised that the suspects had already tampered with the security device on a vacuum cleaner. Deputy Orozco was in contact with Loss Prevention, Sarah Fillis.

The following description was provided for the suspects: A black male wearing a gray Nike hoodie, with a blue hat, and jeans. A black female wearing a blue coat, yellow hat, and carrying a bag. The male was later identified as Barry Washington and the female as Ashle Penn.

When I arrived on scene, I met up with Deputy Rambin who was waiting near the main entrance/exit. Deputy Rambin advised me that he had probable cause to arrest Ashle at that point. For more information refer to Deputy Rambin's primary report.

Ashle exited the store pushing a shopping cart, with Barry a few steps behind her. When Ashle exited, the stolen vacuum cleaner was obvious on the bottom rack of the shopping cart. After Deputy Rambin placed Ashle in handcuffs, I escorted Barry to a nearby bench. I advised Barry of his Rights from a prepared card. When asked if he understood his rights, Barry said " I do."

I learned that Barry had a felony warrant issued for his arrest out of Washington County Community Corrections, WNO/21CR25804. I detained Barry in handcuffs, checked them for fitment, and ensured they were double locked. Julia with the WCSO Records Department confirmed the warrant and notified Parole and Probation.

During my search of Barry, I located multiple magnets secured in a hose clamp. Deputy Orozco informed me that homemade devices like this are used to disable some store anti-theft devices. Deputy Orozco, after entering the store and investigating the circumstances of the theft, showed me a photo of a "Spider" security device, which he advised me was removed in the store by Barry from the vacuum. The vacuum was valued at more than $100.

Based on the information available to me, I believe probable cause existed to arrest Barry for Theft 2 and Possession of Burglary Tools. I arrested Barry and transported him to the Washington County Jail without further incident.

Both Barry and Ashle were formally trespassed from all Target stores in Washington County. Both were advised that if they went to any location, they could be arrested for criminal trespass. Barry and Ashle both refused to acknowledge the admonishment and refused to cooperate with any means used to clarify the admonishment. I typed a formal admonishment on a Word document, which include the addresses for all six Washington County Target stores. I explained the document to Barry and Ashle, and a copy was placed with both of their individual personal property at the Jail.

Action Recommended:

4 On September 18, 2024, Ms. Fillis reported a theft from the night prior on September 17,
5 in which an unidentified female suspect left the store without paying for selected merchandise
6 valued at $895.84. Dept. Rambin took this report from Ms. Fillis and collected security footage
7 and still shots. He asked for an identification bulletin to be made from the photos to seek
8 information about the suspect's identity. It is unclear from his reports when he actually reviewed
9 the photo and video evidence from the September 17 theft.

10 Sometime later, but also on September 18, Dept. Rambin learned that Deputy Augusto
11 Orozco had been texted by Ms. Fillis that the unknown suspect from the September 17 incident
12 had returned, this time accompanied by a male. Dept. Rambin's report makes it clear that he
13 believed Ms. Fillis was referring to the same suspect about whom he had just taken a report of
14 theft. Upon arrival at the store, Dept. Rambin was informed that the female suspect was inside
15 selecting items, and that Ms. Fillis had observed the male suspect remove security wires from a
16 vacuum. When the pair exited the store, Dept. Rambin detained the female suspect and identified
17 her as Ashle' Penn. Dept. Orozco detained the male suspect and identified him as Barry
18 Washington. After detaining Ms. Penn and Mr. Washington, Dept. Orozco spoke to Ms. Fillis
19 and learned that Ms. Penn was seen selecting items in the store, going to the customer service
20 desk, returning some of the items in her cart with a receipt and receiving cash, and then leaving
21 the store with an unpaid-for vacuum and other items still in the bottom of her cart. Dept. Orozco

II. FACTS[1]

On July 30, 2024, a loss prevention officer, Sarah Fillis, at Target on NW Cornell Rd contacted police regarding a series of thefts committed in June and July 2024 by a single unknown female suspect. Deputy David Rambin of the Washington County Sheriff's Office investigated these thefts on July 31, 2024 by collecting loss prevention reports and surveillance footage from Target. These thefts took place on June 2, June 24, July 24, and July 25. The method in the thefts was not always the same. In some incidents, the unknown suspect engaged in "skip-scanning" using the self-checkout lane, which consists of not scanning every item before paying for smaller items and leaving the store. In other instances, the unknown suspect engaged in return fraud or floor returns by returning items that she had just taken from the sale floor in exchange for store gift cards or cash. The report of July 31 consisted of the following theft values:

- June 2 - $38.53
- June 2 - $2.49
- June 24 - $143.51
- July 24 - $197.40